



Order under Section 100 Residential Tenancies Act, 2006

Citation: Hope Villa Non-Profit Residences of NY v Nevers, 2025 ONLTB 97360

Date: 2025-12-18

File Number: LTB-L-048627-25

In the matter of: 3, 5040 Fallingbrook Drive
Mississauga Ontario L5V1Y9

Between: Hope Villa Non-Profit Residences of NY Landlord

And

Betty Nevers Tenant

And

Sarah Nevers Unauthorized Occupant

Hope Villa Non-Profit Residences of NY (the 'Landlord') applied for an order to terminate the tenancy of Betty Nevers (the 'Tenant') and evict Sarah Nevers (the 'Unauthorized Occupant') because the Tenant transferred occupancy of the rental unit to the Unauthorized Occupant without the Landlord's consent. The Landlord also applied for compensation by the Unauthorized Occupant for the use of the rental unit.

This application was heard by videoconference on November 18, 2025.

The Tenant and the Unauthorized Occupant attended the hearing. The Landlord was represented at the hearing by Raza Khimji

Determinations:

1. This is the Landlord's application under section 100 of the *Residential Tenancies Act, 2006* (the "Act") seeking an order terminating the tenancy and evicting an alleged unauthorized occupant from the rental unit.

2. As explained below, I find the Tenant transferred the occupancy of the rental unit to the Unauthorized Occupant in a manner that was not authorized by the *Residential Tenancies Act, 2006* (the 'Act'). Therefore, the Unauthorized Occupant must move out of the rental unit on or before March 31, 2026.

Background

3. The Tenant moved into the rental unit September 2005.
4. The person alleged to be the Unauthorized occupant is the Tenant's adult daughter. She has resided in the rental unit since childhood as a member of the Tenant's household.
5. The rental unit is a rent-geared-to-income ("RGI") unit. As the Unauthorized Occupant became an adult and entered the workforce, her income was disclosed as required for RGI purposes and was used in calculating the rent payable for the household.
6. The Tenant did not obtain the Landlord's consent to assign the tenancy to her daughter, nor was any agreement entered into between the Landlord and the Unauthorized Occupant to create a new tenancy.
7. Following the Tenant's departure, the Unauthorized Occupant remained in possession of the rental unit with her children. The Landlord did not consent to her remaining in the unit as a tenant.

Analysis

8. Section 2 of the Act defines a "tenant" as a person who pays rent in return for the right to occupy a rental unit. A person does not become a tenant merely by residing in a rental unit with a tenant.
9. To establish a tenancy, there must be an agreement between the landlord and the alleged tenant.
10. The evidence before the Board establishes that the Unauthorized Occupant resided in the rental unit as part of the Tenant's household. Although her income was disclosed for RGI purposes and affected the amount of rent payable, I do not find this disclosure created a tenancy agreement with the Landlord.
11. The Unauthorized Occupant did not negotiate tenancy terms with the Landlord, did not receive rent receipts in her own name, and did not pay rent directly to the Landlord as consideration for a tenancy.

12. I find there is no evidence that the Landlord ever consented to create a tenancy with the Unauthorized Occupant.
13. The Tenant submitted that the Landlord had an obligation to explain the process for assigning the tenancy to her daughter. However, the Act does not impose a positive obligation on a landlord to advise a tenant or an occupant about potential assignment or succession options.
14. The Tenant and Unauthorized Occupant are now adults. They could have educated themselves on the process on how to obtain the Landlord's consent to assign the tenancy upon the Tenant vacating the unit. Or in the very least they could have sought legal advice regarding their potential options. Unfortunately, they did not do so.
15. While I accept that the Tenant and the Unauthorized Occupant believed the daughter could remain in the rental unit, a tenancy cannot be transferred or assigned without the Landlord's consent as required by the Act.
16. As unfair as it seems, the Unauthorized Occupant had no legal basis to remain in the rental unit once her mother vacated the unit. I therefore find, on a balance of probabilities, that once the Tenant vacated the rental unit in May 2025, the tenancy ended and SN became an unauthorized occupant.
17. The Landlord is entitled to compensation for the use and occupation of the rental unit by the Unauthorized Occupant.
18. The Unauthorized Occupant owes the Landlord \$13,228.98 in daily compensation for use and occupation of the rental unit for the period from June 2, 2025 to the March 31, 2026.
19. Based on the Monthly rent, the daily compensation is \$43.66. This amount is calculated as follows: \$1328.00 x 12 months, divided by 365 days.
20. The Landlord incurred costs of \$201.00 for filing the application and is entitled to reimbursement of those costs.

Section 83 Considerations

21. The Board has discretion to delay the enforcement of an eviction order involving an unauthorized occupant.

22. The Unauthorized Occupant has lived in the rental unit for many years and the unit is her childhood home. She resides there with her children and testified that she will require additional time to secure alternative accommodation within her financial means.
23. The Landlord did not oppose a delay of three months in enforcing eviction, while the Unauthorized Occupant requested a longer period.
24. I have considered all of the disclosed circumstances and find that it would not be unfair to postpone the eviction until March 31, 2026, pursuant to subsection 83(1)(b) of the Act.

It is ordered that:

1. The tenancy between the Landlord and the Tenant is terminated.
2. The Unauthorized Occupant shall move out of the rental unit on or before March 31, 2026.
3. If the unit is not vacated by March 31, 2026, then starting April 1, 2026, the Landlord may file this order with the Court Enforcement Office (the Sheriff), so that the eviction may be enforced.
4. Upon receipt of this order, the Court Enforcement Office (Sheriff) is directed to give vacant possession of the unit to the Landlord after April 1, 2026.
5. The Unauthorized Occupant shall pay to the Landlord \$13,228.98 which represents daily compensation for the use of the rental unit from June 2, 2025, to the March 31, 2026.
6. The Unauthorized Occupant shall also pay to the Landlord \$43.66 per day for compensation for the use of the unit from November 19, 2025, to the date they move out of the unit.
7. The Unauthorized Occupant shall also pay the Landlord \$201.00 for the cost of filing the application.
8. The Unauthorized Occupant shall pay the Landlord the full amount owing by December 29, 2025.
9. If the Unauthorized Occupant does not pay the Landlord the full amount owing by December 29, 2025, they will owe interest. This will be simple interest calculated from December 30, 2025, at 4.00% on the outstanding balance.

December 18, 2025

Date Issued

Bryan Delorenzi

Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor
Toronto ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

In accordance with section 81 of the Act, the part of this order relating to the eviction expires on October 1, 2026 if the order has not been filed on or before this date with the Court Enforcement Office (Sheriff) that has territorial jurisdiction where the rental unit is located.